

Responsive Elected Leaders in South Carolina

The legislative record behind South Carolinians' two responsive-leadership proposals, 2019–2026 — organized by how close each idea has come to becoming law.

WHAT THIS BRIEF COVERS

In the Community Conversations, concern that elected leaders fail to respond to constituent priorities — whether because of unlimited terms or other weak accountability mechanisms — ranked among the top issues, and two proposals advanced: move the drawing of voting maps to an independent commission, and improve voter education and civics. The 2019–2026 record on both sits inside a wider pattern. Across the last four two-year sessions, the General Assembly took up 177 accountability bills in this set — redistricting and civics plus the surrounding agenda of term limits, campaign money, financial disclosure, and open records — and 163 of them died in their first committee, 149 of those in House or Senate Judiciary. Not one bill in the set ever lost a passage vote on the floor: bills died by silence in committee, or at the very last step. Against that record, the two proposals sit in very different places. Redistricting commissions have been proposed twenty-one times in three designs and none has ever had a hearing, while the legislature drew the maps itself. Civics holds the record's rare win — a college civics requirement became law in 2021 on its second try — with a middle-school version waiting in committee and the neutral voter-information tool participants described never filed at all.

177 accountability bills, 2019–2026	21 redistricting-commission and map-criteria bills — none ever got a hearing or a vote	1 civics-instruction law — the REACH Act (Act 26 of 2021), passed 45–0 and 91–12	149 of 163 first-committee deaths happened in a Judiciary committee
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ALSO IN THE STATE BUDGET (PROVISOS)

Some of what participants asked about already moves through provisos — one-year policy rules enacted inside Part IB of the annual budget bill. Civic-education money is the clearest case: the FY 2024-25 budget funded a Clemson feasibility study for a Center for Civic Engagement (proviso 45.11), and the FY 2026-27 budget put \$2.5 million toward USC's Center for American Civic Leadership and Public Discourse (inside proviso 118.21) — funding placed in the budget, not permanent law, with a university named as the home each time. On the maps-and-elections side, FY 2026-27 proviso 117.145 (GP: Actions on Election Law), renewed every year since FY 2021-22, gives the Senate President and House Speaker an unconditional right to intervene in any lawsuit over an election law — the kind of suit redistricting disputes become. The budget also carries ethics machinery the standalone bills never delivered: new proviso 117.219 requires officials reporting budget-paid income to name the paying agency (a piece of the H3570 disclosure bill that died in conference), proviso 110.2 forces the State Ethics Commission to meet monthly, and provisos 118.6 and 117.92 bar state agencies and Local Government Fund recipients from spending public money on lobbyists. One budget year is a gap: FY 2020-21 has no enacted proviso set — the budget bill died in committee during COVID and the state ran on a continuing resolution. Votes on provisos are votes on the whole budget bill, never on one proviso alone.

CLOSEST TO LAW: MEASURES THAT PASSED BOTH CHAMBERS

Nothing on the two proposals has passed both chambers. The wider accountability agenda got that far three times — and finished once.

Passed both chambers, then died in conference

The financial-disclosure rewrite — H3570 (2025–26) rewrote who must file statements of economic interests and what the forms must show. It passed the House 102–0, passed the Senate 40–0 in an amended version, the House rejected the Senate's changes 23–86, and it died in a conference committee when the 2026 session ended. One slice survived as FY 2026-27 budget proviso 117.219.

Adopted resolutions (no governor step)

The congressional term-limits application — H3008 (2025), an Article V application asking Congress to call a convention limited to congressional term limits, was adopted by the House in March 2025 and the Senate that May, 29–14 — the only term-limits measure in this record to pass anything, and it targets Washington, not the State House. Its broader cousin, the Convention of the States application, nearly finished twice before that: **S133 (2022)** passed both chambers in different forms and died when the House never took up the conference report, and **H3676 (2024)** passed the House 68–30 and died on the Senate calendar. A balanced-budget application (**H3007**) completed adoption in January 2026.

PROVEN SUPPORT: CLEARED A CHAMBER OR A COMMITTEE

Each measure won a floor majority before stalling — including the one time the maps question reached a floor at all.

The mid-decade map redraw — H5683 (2026). The reverse of the commission proposal: the legislature redrawing congressional districts between censuses. Called up in a May 2026 special session, it passed the House 74–37 near midnight after dozens of amendments were tabled (28 on roll-call votes, 55 tabling votes in all), then the Senate voted 26–18 to continue the bill — a floor motion that set it aside and ended it for the session. A companion (H4717) died in House Judiciary. It is the record's only recorded floor outcome on who draws the maps, and the only attempt to leave the ten-year cycle.

The REACH Act's first run — S35 (2019). The college civics requirement passed the Senate 29–7 and died in House Education and Public Works. It returned as S38 and became law two years later.

Campaign funds for dependent care — H4561 (2024). The only campaign-money floor vote in eight years: passed the House 53–45 and died in Senate Judiciary.

Election Commission restructuring — S499 (2021). Passed the Senate 37–7 and died in House Judiciary.

ALREADY LAW — AND THE OPENINGS AROUND IT

What finished regulated somebody else — school boards, college students, Congress — or was the legislature exercising the very power the commission proposal would move.

New laws, 2021–2026

The REACH Act (S38, Act 26 of 2021, 45–0 and 91–12) requires every public college student to complete instruction on the founding documents — this record's one civics-instruction law, passed on its second try. The School Board Ethics Act (S70, Act 191 of 2026, 39–2 and 109–4) created a required code of ethics and training for elected school board members, six years after the same idea died twice in committee. And the maps themselves passed as legislature-drawn bills: the 2021 House map (H4493, Act 117 of 2021; House 96–14 and 100–15, Senate 43–1) and the 2022 Senate-and-congressional map (S865, Act 118 of 2022; Senate 41–2, House 74–35 and 68–36). The set's remaining laws are context: the 2022 Election Laws overhaul (S108, Act 150 of 2022) that created permanent early voting passed unanimously, and the 2024 judicial-screening reform (S1046, Act 219 of 2024) reworked how the state vets the judges the General Assembly elects.

Where lawmakers appear willing to go further

The civics lane has a working pattern: the REACH Act failed once, then passed near-unanimously — and the middle-school design now waiting in committee (H3547) follows the same template, with the State Board of Education named as curriculum curator. Money keeps moving there through the budget even without new law. Ethics codes for other elected bodies pass: S70 is the proof, and the H3570 disclosure rewrite showed both chambers voting unanimously for stronger disclosure in different forms — the gap was the reconciliation, not the idea, and the budget carried a piece forward the next cycle. On redistricting the record shows no comparable opening: twenty-one commission and criteria bills produced zero hearings across three sessions, none was filed at all in 2025–26, and the one map vote the record contains is the Senate shelving the legislature's own mid-decade redraw.

LITTLE TRACTION YET: STOPPED EARLY

Measured against the two proposals: one has never had a hearing in any of its forms; the other's K-12 half is waiting in the committee where its college half once died.

An independent redistricting commission. Twenty-one bills between 2019 and 2024, in three designs that answer the independence question differently. The constitutional design: nine members chosen by a three-member Applicant

Review Panel appointed by the State Inspector General, public deliberations, and maps approved by statewide referendum (H3044/S6 in 2019, H3279/S561 in 2021, H3173 in 2023) — it needs a two-thirds vote of each chamber before voters ever see it. The statutory design: a Citizens Redistricting Commission appointed under State Ethics Commission oversight on the census cycle; the 2021 and 2023 versions bar any legislative or executive alteration of — or veto over — the final plan and forbid adjourning for the year until it is adopted, and the Anti-Gerrymandering Act variant (H4222, 2023) specifies twelve unpaid members balanced five majority-party, five largest-minority-party, two other. The criteria design keeps the legislature's pen but binds it: the FAIR in Redistricting Act (H4229/S750 in 2021, H3069 in 2023) and the 2019 commission-with-deadline bills (H3054/S230). Every one died in House or Senate Judiciary with no hearing and no vote.

Voter education and civics — the waiting half. H3547 (2025) is the design closest to the proposal: every middle schooler completes a civics unit with hands-on components plus a statewide Palmetto Middle School Civics Challenge for student projects, with the State Board of Education adopting the curriculum before the 2027-28 school year. It sits in House Education and Public Works. The neutrality worry participants raised has been the legislature's fight too, from the other direction: H4392 (2022) would have limited what civics teachers can be compelled to discuss and barred private funding for civics curriculum — it died in the same committee. And no bill from 2019–2026 proposes a neutral voter-information tool or assigns any agency to build or curate one.

The wider accountability agenda named in the framing. Thirty state term-limit measures — direct constitutional caps, authorize-by-law amendments, and straight statutes — died in Judiciary without a hearing, thirty for thirty. Thirty-six campaign-money bills (dark-money ad disclosure filed by Senate leadership of both parties, contributor-employer disclosure, a corporate-contribution ban, pay-to-play appointment bans, one public-financing amendment) produced one floor vote. Thirteen lobbying bills, twenty open-government bills — including removing the General Assembly's own FOIA exemption — and the recall and ballot-initiative amendments all stopped in first committee without votes.

WHERE THERE IS MOVEMENT — AND WHERE THERE IS NONE

Moving: civics instruction (the REACH Act enacted; budget money flowing to two university civic-education centers); ethics rules for other elected bodies (the School Board Ethics Act enacted); disclosure by near-miss (H3570's unanimous double passage, with a proviso carrying a piece forward); and the legislature's own map-drawing (Acts 117 and 118). **Not moving:** every design that changes who draws the maps (0 of 21, no hearing ever taken); the neutral voter-information tool (never filed); state term limits (0 of 30, no hearings); campaign-money rules (0 of 36 enacted, one floor vote); lobbying and open-government bills (0 of 33, no votes); recall and ballot initiative (0 of 3).

Where bills stop, and who sponsors them. The first committee is this record's great filter, and for this issue it is overwhelmingly one room per chamber: of the 163 first-committee deaths, House Judiciary accounts for 84 and Senate Judiciary for 65; civics bills route to House Education and Public Works instead. South Carolina publishes committee outcomes but never committee vote tallies, so no count exists for any of these stops. Party labels are deliberately absent throughout this packet — attaching them requires a ballot-roster join that was not fetched — so this brief makes no party claims. The two proposals share their most frequent sponsors: Rep. Cobb-Hunter led seven redistricting-commission bills across three sessions and the middle-school civics bill, and Sen. Fanning led four commission bills; the earlier constitutional designs were led by Sen. Setzler, Sen. Davis, and Rep. Clary; Sen. Grooms led the REACH Act and Sen. Hembree the School Board Ethics Act.

FEDERAL OVERLAP: WHAT WASHINGTON ALREADY COVERS

Where the decision actually sits — and it is almost entirely state ground.

The federal decennial census sets the redistricting clock, and congressional maps must satisfy federal law — but who draws South Carolina's maps is state ground alone: the state constitution assigns reapportionment to the General Assembly, which is why the full commission design requires a state constitutional amendment (a two-thirds vote of each chamber plus a statewide referendum) and why the statutory designs route their plans back through the legislature. The Article V applications in this record run the other direction — the state asking Washington to act: the adopted congressional term-limits application (H3008) joins other states' applications toward the two-thirds needed for a convention, and it changes nothing in South Carolina law by itself. Civics curriculum is state ground entirely: the REACH Act and the middle-school proposal are state statutes, with the State Board of Education as the named curator. Voter information likewise — the State Election Commission (scvotes.gov) is the voter-facing agency, and nothing in federal or state law in this record directs anyone to build the neutral information tool participants described.

Policy Spotlights

A focused, bill-by-bill look at how far each proposal from the final Community Conversations grid has traveled. Each policy is sorted into the same viability groups the brief uses, so the brief's top section shows what is viable overall and these spotlights show how viable one policy may be. The frequency, consensus, and concerns under each heading are what participants reported; everything else is the legislative record.

INDEPENDENT / NONPARTISAN REDISTRICTING COMMISSION (ANTI-GERRYMANDERING)

Raised in three of four in-person events, with very strong support where discussed. The concerns raised: how independent the commission would really be, and that keeping redistricting on the ten-year cycle would help. The record: twenty-one bills in three designs, none ever heard; the legislature drew the maps itself, and its one attempt to leave the ten-year cycle was shelved on the Senate floor.

Already law (nearby — the power the proposal would move)

- **H4493 (Act 117 of 2021):** the legislature's own post-census House map; House 96–14 and 100–15, Senate 43–1.
- **S865 (Act 118 of 2022):** the legislature's own Senate and congressional maps; Senate 41–2, House 74–35 and 68–36.

Proven support (the reverse direction)

- **H5683 (2026):** the mid-decade congressional redraw — the record's only departure from the census cycle. Passed the House 74–37 near midnight after dozens of amendments were tabled (28 on roll-call votes, 55 tabling votes in all); the Senate then voted 26–18 to continue (set aside) the bill, ending it for the session. A companion, H4717 (2026), died in House Judiciary.

Stopped early (all twenty-one commission and criteria bills; no hearings, no votes)

- **Constitutional independent commission, maps approved by referendum:** H3044 and S6 (2019), H3279 and S561 (2021), H3173 (2023) — nine members chosen by a three-member Applicant Review Panel appointed by the State Inspector General, with public deliberations; S135 (2019) kept the nine-member referendum design with a different selection route. Needs two-thirds of each chamber plus a statewide referendum.
- **Citizens Redistricting Commission:** H3432 and S254 (2019), H4201 and H4202 (2021), H3243 and H3245 (2023) — members appointed under State Ethics Commission oversight on the census cycle; the 2021 and 2023 versions bar legislative or executive alteration of or veto over the final plan and forbid adjourning for the year until it is adopted.
- **Anti-Gerrymandering Act:** H4222 (2023) — twelve unpaid members appointed by the State Ethics Commission: five from the majority party, five from the largest minority party, two from other parties; the commission proposes ten candidate maps.
- **Binding criteria, no commission:** the FAIR in Redistricting Act — H4229 and S750 (2021), H3069 (2023) — fairness standards and a public process for maps the General Assembly keeps drawing; H3054 and S230 (2019) — a commission appointed every ten years whose plans the legislature must adopt by a hard deadline, with no adjournment for the year until it does.

On the two concerns, what is in the record

- **Independence:** the filed designs answer it three different ways — who appoints (an Inspector General panel versus the State Ethics Commission), party balance (five/five/two in H4222), whether the plan can be altered or vetoed (barred in the 2021–2023 citizens-commission bills), and whether voters approve the maps (the referendum designs). None was ever tested in a hearing, so the record contains no legislative verdict on any of them.

- **The ten-year cycle:** every filed design keys its appointments to the decennial census (the citizens-commission bills convene in years ending in "1"). The record's one attempt to redraw between censuses came from the legislature itself, and the Senate's 26–18 continue vote ended it.

Never filed

- No commission or criteria bill was filed in the 2025–2026 session — the first session in this record without one.

BETTER VOTER EDUCATION / CIVICS AND NEUTRAL CIVIC INFORMATION TOOLS

Raised in Charleston and Columbia, with very strong support where discussed. The concern raised: how neutral information would be selected and disseminated. The record: one law at the college level, a middle-school bill waiting in committee, budget money moving where the bills have not — and the information tool itself never filed.

Already law

- **S38 (Act 26 of 2021), the REACH Act:** every public college student completes instruction on the founding documents; Senate 45–0, House 91–12, on the second try.

Proven support

- **S35 (2019):** the REACH Act's first run; passed the Senate 29–7 and died in House Education and Public Works. (House versions H4296 (2019) and H3338 (2021) died in committee.)

Stopped early

- **H3547 (2025):** the design closest to the proposal — every middle schooler completes a civics unit with instructional and hands-on components, plus the statewide Palmetto Middle School Civics Challenge for student-led projects; the State Board of Education would adopt the curriculum before the 2027-28 school year. Sits in House Education and Public Works.
- **H4392 (2022), the Keep Partisanship Out of Civics Act:** the neutrality worry approached from the other direction — limits on what civics teachers can be compelled to discuss, no credit for student lobbying, no private funding for civics curriculum or teacher training. Died in the same committee.

On the neutrality concern, what is in the record

- The curator question exists in the record from both directions: H3547 names the State Board of Education as curriculum curator, while H4392 would have restricted content and funding sources — and the legislature has voted on neither. No bill defines "neutral" civic information or assigns anyone to curate it.

Moving through the budget instead

- **FY 2024-25 proviso 45.11:** a Clemson feasibility study for a Center for Civic Engagement.
- **FY 2026-27 (inside proviso 118.21):** \$2.5 million for USC's Center for American Civic Leadership and Public Discourse. Both are one-year funding decisions naming a university as the home.

Never filed

- No bill from 2019–2026 proposes a neutral voter-information tool for voters or assigns any agency — including the State Election Commission, the state's voter-facing agency — to build or curate one.

GLOSSARY

- **Article V application:** A state's formal request that Congress call a national convention to propose a constitutional amendment; two-thirds of the states must apply. South Carolina adopted one for congressional term limits (H3008, 2025) and one for a balanced budget (H3007, 2026); neither changes state law by itself.
- **Census cycle / decennial:** The federal census every ten years (2020, 2030...) that triggers redistricting; the filed commission bills key their appointments to it.
- **Citizens Redistricting Commission:** The filed design where members are appointed under State Ethics Commission oversight and the commission submits reapportionment plans; later versions shield the final plan from alteration or veto.
- **Conference committee:** Negotiators from both chambers who reconcile differing versions of a bill; the H3570 disclosure rewrite died there in 2026.
- **FOIA (Freedom of Information Act):** The state open-records law; bills to remove the General Assembly's own exemption never got a vote.
- **Gerrymandering:** Drawing district lines to favor a party or incumbent; the commission and criteria bills are the record's filed answers to it.
- **Mid-decade redistricting:** Redrawing districts between censuses; H5683 (2026) passed the House and was shelved by the Senate — the record's only attempt.
- **Palmetto Middle School Civics Challenge:** The statewide student civics-project showcase H3547 would create.
- **Proviso / Part IB:** A one-year policy rule enacted inside the annual state budget bill; Part IB is the budget section that carries them. Votes attach to the whole budget bill, never one proviso.
- **REACH Act:** Act 26 of 2021 — required college-level instruction on the founding documents; this record's one civics-instruction law.
- **Redistricting / reapportionment:** Redrawing House, Senate, and congressional district lines after each census. The state constitution assigns it to the General Assembly — which is why a full commission needs a constitutional amendment.
- **Referendum:** A statewide public vote; the constitutional commission design sends its maps to one, and the amendment itself would require one.
- **Statement of economic interests:** The yearly form where officials disclose income sources and business ties; the H3570 rewrite of it passed both chambers and died in conference.
- **State Board of Education:** The body H3547 names to adopt the middle-school civics curriculum — the curator the neutrality question turns on.
- **State Ethics Commission:** The agency that receives campaign and disclosure filings — and, in the citizens-commission bills, the body that would oversee commissioner appointments.
- **State Inspector General:** The independent state fraud-and-misconduct office; in the constitutional commission design, it appoints the panel that selects the nine commissioners.
- **Term limits:** Caps on how long officials may serve; thirty state measures went unheard, while the adopted H3008 targets congressional terms.

LEGISLATIVE PROCESS GLOSSARY

- **H / S bill numbers:** The chamber a bill started in (House or Senate) plus its number. Numbering restarts every two-year General Assembly, so the same number in different sessions is a different bill.
- **General Assembly / session:** The legislature elected for two years — the 123rd (2019–2020) through the 126th (2025–2026) appear in this brief. It meets each January; a bill filed in the first year stays alive into the second, and everything unpassed dies when the second year ends.
- **Chambers:** The 124-member House of Representatives and the 46-member Senate; a bill must pass both to reach the Governor. Vote totals below those figures reflect absences.
- **Prefiled:** Filed in the weeks before the January session begins.
- **First committee:** The committee a bill is sent to after introduction. Most bills that fail die there with no further action recorded — in this record, every redistricting-commission and term-limits bill did, almost always in House or Senate Judiciary; civics bills route to House Education and Public Works.
- **Committee report:** The committee's published outcome — "Favorable" or "Favorable with amendment." South Carolina publishes these outcomes but never committee vote tallies, so no committee vote counts exist anywhere in these documents.
- **Readings:** A bill passes a chamber through three readings; the recorded roll calls in these documents attach to second or third reading, or to "Passage of Bill."
- **Roll call / vote pairs (e.g. 45–0 and 91–12):** Yes–no floor tallies, one per chamber — the first number in a pair is usually the originating chamber.
- **Second chamber:** After passing its own chamber, a bill repeats the whole process — committee, then floor — in the other one. The REACH Act's first run (S35) ended in a second-chamber committee.
- **Conference committee:** Three members from each chamber who negotiate one final version after the first chamber votes not to accept the second chamber's amendments (H3570's non-concurrence was 23–86). A bill dies there if the session ends first (H3570, 2026) or if a chamber never takes the report up (S133, 2022).
- **Motion to continue:** A Senate floor motion that sets a bill aside; in a session's second year it effectively ends the bill (H5683, 26–18, May 2026).
- **Tabling an amendment:** A floor vote setting an amendment aside without adopting it; the House tabled 28 H5683 amendments on roll-call votes this way.
- **Joint resolution:** A measure with the force of law used for single actions — including proposing constitutional amendments, which need a two-thirds vote of each chamber and a statewide referendum. The commission and term-limits amendments travel this way.
- **Concurrent resolution:** A statement or application adopted by both chambers that never goes to the Governor; the Article V applications travel this way.
- **Ratified / R number:** After both chambers pass identical text, the bill is ratified and numbered (R221) before going to the Governor.
- **Act number:** A signed bill becomes a numbered act of its year — "Act 191 of 2026" — the citation these documents use for enacted bills.
- **Veto / override:** The Governor can reject a passed bill; the General Assembly can override with a two-thirds vote in each chamber. No bill in this set was vetoed.
- **Budget proviso (Part IB):** South Carolina's counterpart to other states' budget riders: one-year policy rules enacted inside the annual appropriations act, where the election-litigation power and the civic-education money in this brief live. Votes are on the whole budget bill, never on one proviso.
- **Sponsor / lead sponsor:** The lawmakers who formally introduce a bill; the first member on the official sponsor line is its lead. Party labels appear nowhere in these documents because the roster join was deliberately not fetched.
- **"Died at the session's end":** The measure cleared every vote it faced but ran out of calendar — a timing stop, not a recorded "no."